

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Wednesday, June 24, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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21CV-03285	Sheila Andrews vs Steven M. Nailen, et al.
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Motion for Summary Judgment

Defendant Nailen's motion for summary judgment is GRANTED.

“[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, as modified (July 11, 2001).)

Defendant's undisputed material facts 13, 15, and 16, supported by admissible evidence, establish a prima facie case that Defendant had no actual knowledge of the dogs' dangerous propensities and is entitled to judgment as a matter of law.

In opposition, Plaintiff offers testimony that Defendant gave permission for the dogs to be on the property, that Defendant was aware of the dogs, that a next-door neighbor complained directly to Defendant that the dogs had broken through the fence on multiple

occasions, and that Defendant had an opportunity to view the dogs' behavior. (See, evidence cited in Plaintiff's response to Defendant's UMFs 13, 15, and 16.)

Yet Plaintiff's evidence does not establish a triable issue of material fact as to Defendant's actual knowledge of the dogs' dangerous propensities. Knowledge the dogs existed and the ability to view their behavior is not evidence Defendant knew the dogs were dangerous. Even knowledge that the dogs may have broken through a neighboring fence does not demonstrate actual knowledge the dogs had the propensity to be dangerous.

Without actual knowledge of the dogs' dangerous propensities, Defendant owed no duty to Plaintiff. As Defendant owed no duty to Plaintiff, he is entitled to judgment as a matter of law.

As the prevailing party, Defendant is ordered to submit a written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, for this Court's signature.

22CV-01720

Alexis Figueroa vs Foster Poultry Farms, et al.

Motion to Bifurcate Trial

Defendant's motion to bifurcate the trial on issues of liability and damages is GRANTED.

Here, the issue of liability is much simpler than the issue of damages. The jury must first resolve the dispute about whether Defendant negligently operated his vehicle, thereby causing Plaintiff's injuries. Only upon making such a finding will the jury be faced with determining the amount of any damages. The witnesses for each of these phases of trial will be substantially different, and the liability phase is expected to require significantly fewer witnesses than the damages phase.

In contrast to the relatively simple issue of liability, it is anticipated that up to forty (40) witnesses may be called regarding Plaintiffs' injuries and damages. In light of the potential damages and extensive medical treatment, which Defendant will challenge, the damages phase will be lengthy due to the testimony of lay witnesses, many treating physicians, and opinions of dueling experts. Furthermore, due to the nature of this tragedy and extensive injuries suffered by Plaintiff, if the jury were to hear evidence of Plaintiffs' damages before deciding the issue of liability, it might allow its sympathy to influence its liability decision.

In sum, if Plaintiffs do not prevail on the issue of liability, court time will not be unnecessarily expended on damages. If Plaintiffs prevail, the second phase will be more straightforward, focusing exclusively on any dispute regarding the scope of injuries and damages. This will simplify the issues for the jury. Bifurcation will expedite the trial, avoid unnecessary costs and delays, and prevent undue prejudice to Defendant.

The Court will sign the order lodged on May 28, 2026.
